

Key Definitions & Related Documents

Key definitions

Tubectomy: Permanent surgical method of birth control for women.

Full and Final Settlement: Process followed for Associates who are separating by organization for monetary settlement / closure of dues owed by either party.

Commissioning Mother: Biological mother who uses her egg to create an embryo planted in any other woman.

Gestation Period: Pregnancy period till delivery.

Contractors: Those who are hired on a fixed term contract / temporary basis (CWRs).

Notice Period: Duration between date on which separation is raised and last working day of Associate as per the terms and conditions of the offer letter.

EAMS (Enterprise Absence management System): Tool used to apply leave in the system.

Scope

The policy applies to all employees, including trainees, on the payrolls of Cognizant Technology Solutions India Private Limited ("Cognizant") and its affiliates and subsidiaries over which Cognizant India has operational control, in the course of employment (collectively "Associates"). It does not cover leave practices pertaining to Contractors.

Leave policy enables employees to avail time off from work to relax / recover from illness, maternity, or for personal reasons.

Eligible Associates are entitled to the following benefits:

- National and Festival Holidays
- Earned Leave (EL)
- Casual Leave (CL)
- Sick Leave (SL)
- Compensatory Off (Comp off)
- Maternity Leave (ML)
- Extended Maternity Leave (EML)
- Maternity Loss of Pay (MLOP)
- Miscarriage Leave
- Tubectomy
- Commissioning Leave
- Paternity Leave
- Loss of Pay (LOP)
- Child Adoption Leave.

Guiding principles

National and Festival Holiday

Cognizant observes ten national holidays including festival holidays, each year. The 4 national holidays are fixed and will be observed every year.

- Republic Day
- Independence Day
- May Day
- Gandhi Jayanthi

There are six regional holidays which are fixed for a year & may vary from one location to another. These are decided every year by the Location leadership team, in consultation with the respective Center

Heads and should be in line with the regional Govt. notification. To view the holiday schedule for the year, navigate to Holiday List in One Cognizant.

Earned Leave (EL)

- Associates are entitled to eighteen (18) days of Earned Leave per year.
- Associates are entitled to one and a half (1.5) days of earned leave in a month, provided they are on Cognizant India payroll (or) have joined Cognizant, on or before the fifteenth (15th) of the month.
- There will be no Earned Leave accrual when an Associate is on LOP / Job Abandonment for more than fifteen (15) days in a month. Below are few scenarios as an example:

From Date	To Date	Accrual
January 1	February 1	Earned Leave accrual will occur for February since the number of LOP days is less than fifteen (15) days.
January 31	March 1	Earned Leave accrual will occur for January and March since the number of LOP days is less than fifteen (15) days in those months.
January 16	March 15	Earned Leave accrual will not happen for January & February since LOP days is more than fifteen (15) days and accrual would be provided for March.

- Earned Leave will be accrued for an Associate on Notice Period.
- Earned Leave cannot be availed while on Notice Period.
- Associates can accumulate up to eighteen (18) days of Earned Leave in one calendar year.
- Any unused Earned Leave in the current year can be carried forward to the subsequent calendar year only, after which the leave lapses.
- If an Associate joins Cognizant on or before 15th of a month, the respective leave credit would happen during the first week of the subsequent month. For example, if an Associate has joined work on 13th of April, Associate's Earned Leave will be credited during first week of May.
- If an Associate joins after 15th of a month, there would not be any leave credit for that month. For example, if an Associate has joined work on 16th of April, Associate will not be entitled to leave credit for April.
- Associates must raise a request for leave through the Enterprise Absence Management System (EAMS) at least a week before their vacation and obtain their home manager's approval.

Encashment of Earned Leave:

- The primary option is to adjust Earned Leave balance against the Notice Period (NP) at BU's discretion. Earned Leave balance as on the date of resignation will be considered for this purpose.
- The remaining Earned Leave balance available as of the last working day (LWD), will be considered for encashment on the last drawn basic pay.
- Encashment of leave will be processed as part of Full and Final settlement.
- Notice Period adjustment eligibility and sum eligible for encashment, based on the number of available Earned Leave (EL) balance at the time of separation:

Scenario	Eligibility for Notice Period adjustment	Sum eligible for encashment
Earned Leave balance as of the date of resignation is	Yes	[(No. of available EL as on LWD X 7/5) – (EL adjusted in
>=7 days and Earned Leave balance (post NP adjustment) as on the LWD is < 7 days or Earned Leave balance as of the date of resignation is < 7 days and Earned Leave balance (post NP adjustment) as on the LWD is >= 7 days or Earned Leave balance as of the date of resignation is >=7 days and Earned Leave balance (post NP adjustment) as on the LWD is >= 7 days.	Yes	NP)] X [Last drawn Annual Basic / 365].
Earned Leave balance as of the date of resignation is < 7 days and Earned Leave balance (post-NP adjustment) as on the LWD is < 7 days.	Yes	[No. of available EL post adjusting with the NP as on the LWD] X [Last drawn Annual Basic / 365].
Zero Earned Leave balance as on the date of resignation	No	[No. of available EL as on the LWD] X [Last drawn Annual Basic / 365].

Casual Leave (CL)

Associates can avail of Casual Leave for unforeseen personal emergencies or for personal time off. This also includes any leave taken to celebrate festivals of faith that have not been declared as a holiday by Cognizant. Associates are entitled to six (6) working days of paid Casual Leave per year which will be credited on January 1st, of every year.

- For Associates who join Cognizant during the year, leave credit will be prorated, for every quarter. For example, Associate joining work on 13th of April, which falls in the first half of Q2, i.e., before

15th of the second month of the quarter, will be entitled to overall 4.5 days of Casual Leave during that calendar year. An Associate joining work on the 2nd of June, which falls in the second half of Q2, will be entitled to overall 3 days of Casual Leave during that calendar year.

- Associates must raise request for leave through EAMS at least a week before their absence and obtain their home manager's approval unless it is an emergency.
- Associate's unused Casual Leave cannot be carried forward and will get lapsed on December 31st of the same year.
- Casual Leave cannot be availed while on Notice Period.
- Associates cannot encash their Casual Leave.

Sick Leave (SL)

- Associates are entitled to one (1) day of Sick Leave in a month, provided they are on Cognizant's payroll (or) have joined Cognizant, on or before 15th of the month.
- If the Associate joins the organization on or before 15th of a month, the respective leave credit would happen during the first week of the subsequent month. For example, if an Associate has joined on April 13th, Associate's Sick Leave entitlement will be credited during the first week of May.

- If the Associate joins after 15th of a month, there would not be any leave credit for that month. For example, if an Associate has joined on April 16th, Associate will not be entitled to leave credit for April.
- Associates can accumulate up to eighteen (18) days of Sick Leave; anything greater will lapse automatically.
- There will be no Sick Leave accrual when an Associate is on LOP / Job Abandonment for 15 days or more in a month. o Associates cannot encash Sick Leave.
- Associates must keep their home manager informed if they are unable to attend work due to any illness and must apply for Sick Leave in EAMS on the day they return to work.
- Associates need to produce relevant medical reports / certificates for availing continuous Sick Leave of more than 3 days.
- Associates on Notice Period can avail Sick Leave subject to validation of medical documents.
- Associates who have to undergo a planned hospitalization must apply for Sick Leave in EAMS, before availing their leave. They are strongly encouraged to keep their home manager informed of the progress of their health.
- Cognizant reserves the right to ask its Associates to undergo a comprehensive check-up by specified doctors, to ensure that Associates are fit to resume work.

Compensatory Off (Comp off)

- Compensatory off (comp off) refers to a day off taken against extra work done due to project requirements.
- Associates need to record the days worked on a holiday or weekend, which could be a Saturday or Sunday (depending on their workweek schedule), in EAMS.
- Home manager should approve the additional day(s) worked, upon which the Associate becomes eligible to avail compensatory off leave.
- Associates can avail compensatory off upon manager's approval.
- Associates can avail of a maximum of three continuous days of compensatory off in a single transaction.
- Compensatory off should be availed within sixty (60) calendar days from the day on which they have worked; else their leave will lapse.
- Associates should record the day on which they have worked in the timesheet.
- Associates will be eligible to avail compensatory off while on Notice Period.
- Associates cannot encash compensatory off or combine it with other leave types.

Maternity Leave (ML)

- Associates are entitled to one hundred and eighty-two (182) days (twenty six (26) weeks) of paid maternity leave (ML) for the first two (2) surviving children from date of joining Cognizant.
- Associates having more than two (2) surviving children, applying ML for the third child or so on, shall be entitled to eighty four (84) days (twelve (12) weeks) of paid maternity leave.
- Maternity leave is inclusive of all intervening Saturdays, Sundays and any other holidays declared by Cognizant.
- ML start date can be eight (8) weeks preceding the expected date of delivery for the first two (2) instances.
- For the wellbeing and safety of the Associate and the child, it is recommended to avail maternity leave at least fourteen (14) days before the expected date of delivery.
- Associates are required to fill in Maternity Details in the below navigation before availing Maternity Leave (Employee Self Service >> Personal Information >> Maternity Details).
- Associates need to apply for ML eight (8) weeks in advance in the leave system.

Extended Maternity Leave (EML)

- Women Associates are eligible for thirty (30) days of paid extended maternity leave if availed maternity leave is less than twenty-six 26 weeks. However, extended maternity leave (EML) is not

a privileged leave under Maternity Act. Associates who wish to avail of EML should submit a certificate from a certified medical practitioner detailing the following:

- An active line of treatment.
- Reason to be on extended leave citing the cause of illness.
- Tentative period to be on extended leave (end date of leave).
- EML is applicable only for the following instances:
 - Associate's criticality during or due to maternity.
 - Critical medical condition of the newborn.
- Approval of EML is at the discretion of the organization after scrutinizing the documents submitted by the Associate.
 - In case of concealment of facts / false claim stating unwarranted illness / reason for extended leave is not in line with the active line of treatment / forged documents, necessary action would be taken as per the clauses stated in the Misconduct and Disciplinary action Policy.

Maternity Loss of Pay (MLOP)

- Women Associates can further avail of Maternity Loss of Pay (MLOP) leave of up to one hundred and eighty (180) calendar days.
- MLOP can be availed in parts, either before or after ML, provided that the total duration of MLOP does not exceed 180 calendar days.
- Associates must submit the medical certificate issued by a doctor indicating the expected date of delivery for availing MLOP before ML.
- Associates should exhaust their available earned, sick and casual leave balance, before applying for MLOP.
- Associates can avail of all leave types (ML, EL, CL, SL, MLOP), on account of maternity, as per their need, continuously, without any breaks or working day in between.
- Cognizant reserves the right to collect relevant documents if warranted.

ML scenario	Leave Entitlement
Associates applying for ML for the first two surviving children	• 182 days of paid ML. • 30 days of paid EML (in case of a medical emergency). • 180 days of MLOP. • (ML + EML + Available Earned / Sick / Casual Leave + MLOP) shall not exceed 365 days (inclusive of weekends)
Associates applying for ML for the third surviving child and so on	• 84 days of paid ML. • 30 days of paid EML (in case of a medical emergency). • 180 days of MLOP. • (ML + Available Earned / Sick / Casual Leave + MLOP) shall not exceed 365 days (inclusive of weekends).

Miscarriage Leave

- On submitting medical certificate / documents, women Associates are entitled to six (6) weeks of paid leave immediately from the date of the miscarriage, inclusive of weekends / holidays.
- In case of birth of stillborn child post thirty sixth (36th) week of gestation period, Associate shall be eligible for Maternity Leave as applicable.
 - EML / MLOP will not be applicable in this scenario.

Tubectomy

- Women Associates are entitled to two (2) weeks (inclusive of weekends / holidays) of paid leave immediately from the date of surgery on submitting the medical certificate in EAMS.
- Tubectomy leave cannot be availed while on Maternity Leave and / or MLOP.

Commissioning Leave

- Women Associates commissioning a child are eligible for eighty-four (84) days (twelve (12) weeks) of commissioning leave, inclusive of weekends / holidays.
- The following documents are required to be submitted to avail commissioning leave.
 - Birth certificate of the child possessing the name of the commissioning mother.
 - Discharge summary from the hospital at the time of birth of the child.

Paternity Leave

- Paternity Leave is applicable for new and expectant fathers.
- Associates will be eligible for a leave of 5 continuous working days. This leave cannot be availed in parts.
- This entitlement is applicable (can be availed) for up to two (2) instances of childbirth during Associate's entire tenure with Cognizant.
- Paternity Leave may be availed either ten (10) calendar days before the expected date of delivery or within ninety (90) calendar days from the date of birth of the child.
- Associates on Notice Period will be eligible for Paternity Leave by submitting relevant documents along with home manager's approval by raising a GSD.
- Associates can apply for Paternity Leave through EAMS under the Paternity Leave category.
- It is mandatory to submit any one of the three documents listed below:
 - Medical certificate from certified medical practitioner; stating expected delivery date with reference to declared spouse's name, in case of availing Paternity Leave before childbirth.
 - Birth certificate, in case of availing Paternity Leave post-childbirth.
 - Medical certificate from certified medical practitioner; stating childbirth date with reference to spouse's name, in case of availing Paternity Leave posthospitalization period.
 - This category of leave is not eligible for encashment.
- Approval of Paternity Leave is subject to review and approval of documents as submitted by the Associate.
- In case of concealment of fact(s) / submission of a doctored / false leave request / forged / falsified documents, necessary action would be taken as per the clauses stated in the Misconduct and Disciplinary action Policy.

Loss of Pay (LOP)

This leave type can be availed only after exhausting all the available leave (EL, SL, CL). Any unauthorized leave is considered as LOP and is to be initiated by the home manager. LOP cannot be adjusted against future leave accruals and cannot be reversed.

- LOP approval matrix:

Duration	Approvals	Reason for availing of LOP
Up to 30 days of LOP	Home Manager	Any personal reason
LOP ranging 31 – 90 days	BU / SBU head (D+) and BU TM (SM+)	Any personal reason
LOP ranging 91 – 180 days	BU / SBU head (AVP+) and BU TM (SM+)	Only for critical illness (Self)

- For LOP beyond 180 days (on exception), the request needs to be validated with the HR Benefits team and approval sought from BU / SBU Head (VP+) and India HR Head.

- Approval of LOP shall be at the discretion of the business unit.
- LOP is inclusive of all intervening Saturdays, Sundays and any other holidays declared by Cognizant.
- LOP cannot be availed for 0.5 days.

- Associates availing LOP for more than 30 calendar days can be moved to the Corporate Deployable Pool (CDP Leave Project) only on grounds of medical reasons for self, post validation of necessary documents by the CDP team.
- Associates requesting for LOP for more than 90 calendar days for critical illness, should provide valid medical documents. The same shall be validated by the HR Shared Services team / CDP team, before approval of the leave.
- The cumulative number of days of LOP (even if availed in breaks) in a calendar year shall not exceed 90 days for any personal reason or 180 days in case of critical illness.
- Associates availing more than 90 calendar days of LOP in the last quarter of the year, i.e. Q4 (Oct-Dec), shall wait for 3 months until the next application of LOP.
- Associates will be on LOP for any unauthorized absenteeism.

Any excess leave (regardless of leave type) availed by an Associate beyond their eligibility will either result in adjustment / recovery in the form of Loss of Pay (LOP) while active or shall be adjusted / recovered from full & final settlement if they are exiting Cognizant.

Child Adoption Leave

- All Associates are entitled to six (6) weeks (forty-two (42) calendar days) of leave from the date of legal adoption of the child, inclusive of weekends / holidays.
- Women Associates adopting a child whose age is less than three (3) months are entitled to eighty-four (84) days of paid adoption leave, inclusive of weekends / holidays.
- Documents required to avail the benefit:
 - Legal adoption certificate (or)
 - Application form filled in the court and certificate from the agency confirming the adoption.

Associates Travelling on International Assignments with Payroll Transfer from / to India.

- Associate's leave entitlement will be governed by the leave policy / guidelines of respective geographies, where Associate is deputed to. These will be in addition to any other entitlements specifically mentioned in the assignment letter or related Statement of Benefits or Employee handbook. The leave entitlement will be prorated for the duration of their stay in the deputed country.
- Associates cannot use their accumulated India leave while on international assignments and vice versa.
- Leave accrual in India will be suspended effective the start date of the international assignment and will restart once the assignment ends and Associate returns to India.
- Leave balance shall lapse as per India carry forward / lapsing guidelines as stated in this policy document.
- **Earned Leave, Casual Leave:** Associates can use their available Earned and Casual Leave balance, either before the assignment start date or only after they return to India and are on India payroll, provided that these leaves have not lapsed as per the carry forward guidelines of this policy.
 - Earned Leave can be carried forward for one calendar year, after which the leave will get lapsed.
 - Casual Leave will get lapsed by December 31st of the same year.
- **Sick Leave:** The accrual of sick leave will stop for the assignment duration. Sick Leave balance up to a maximum of 18 days will be retained till the Associate returns to India and can be availed by the Associates once they return.
- **Maternity Leave:** Maternity Leave can be availed as per the eligibility criteria mentioned above, only if the Associate is active on India payroll.
 - Associates travelling from onsite geography to India payroll are entitled to avail the differential paid Maternity Leave in India. For example, an Associate who has availed 45 days of paid Maternity Leave in the onsite geography, on returning to India payroll can avail the differential paid Maternity Leave which is 137 days (182 days – 45 days) in India.

- Associates who have availed unpaid maternity leave in the onsite geography, on travelling to India are entitled to 182 days of paid maternity leave. However, the number of days of unpaid leave availed in the onsite geography will be reconciled with MLOP in India. For example, an Associate who has availed 45 days of unpaid maternity leave in the onsite geography, on returning to India payroll can avail the 182 days of Maternity Leave and 135 days (180 days – 45 days) of MLOP in India.
- Associates who have availed paid leave (earned leave, casual leave or sick leave) in the onsite geography for maternity, on returning to India payroll are entitled to 182 days of maternity leave in India. For example, an Associate who has availed 10 days of earned leave for maternity in the onsite geography, on returning to India payroll can avail 182 days of paid maternity leave in India.
- Associates should submit the proof of ML availed in the onsite geography, as per the tracking system followed either by the respective Talent Managers or Shared Services team in that geography.
- Associates travelling from onsite geography to India payroll are eligible to avail paid maternity leave in India within 3 months from the date of delivery.
- **Compensatory off:** Leave earned in India needs to be availed in India itself within 60 calendar days from the day on which the Associate has worked. For more information, visit Leave under 'Personal life event' on Navigator.

Process

- All Associates must submit their leave requests through EAMS and have the leave approved by their home manager.
- Medical certificates, wherever required, must be submitted.
- Any excess leave (regardless of leave type) availed by an Associate beyond their eligibility will either result in adjustment / recovery in the form of Loss of Pay (LOP) while active or shall be adjusted / recovered from full & final settlement if they are exiting Cognizant.

Approvals

- **Home Manager:** Approve leave requests submitted by Associate in EAMS.
- **HRSS:** All types of parental leave including Maternity leave, Tubectomy, Miscarriage, Adoption leave and Paternity leave will be approved by HRSS team post home manager's approval in the system.

Responsibility Matrix

- Associate
 - Timely submission of leave application through EAMS.
- Home Manager
 - Approve leave submitted by the Associate.

Exception Management

All exceptions to this policy should be brought to the notice of India HR Benefits team and should be approved by Head of Human Resources – India.

Disciplinary consequences

Subject to local laws and regulations, a violation of this Procedure could result in disciplinary action, up to and including termination. If you are aware of a violation of this Procedure, you have an obligation to report it to the Company. As stated in Cognizant's [Whistleblower and Non-Retaliation Policy](#), Cognizant does not tolerate retaliation against any individual who submits a good faith report of a violation or possible violation of law, the [Code of Ethics](#), or other Cognizant policies and procedures.

To report a possible violation of this Procedure, visit Cognizant's Ethics & Compliance Helpline (a secure and confidential reporting system) at: <http://www.cognizant.com/compliance-helpline>.

Policy Modifications

Cognizant reserves the right to amend its policies as necessary. Any changes to the Leave Policy India will be approved by Head of Human Resources - India. Associates are required to raise GSD for any queries.

Version history

SEP-01-2011	V1.0 Introduction of India Leave Policy.
JAN-01-2013	V1.1 Annual review and process changes, if any, incorporated.
AUG-01-2014	V1.2 Changes incorporated in eligibility and approvals.
AUG-01-2015	V1.3 Clarification on leave policy, eligibility and accrual during the onsite assignment and on onsite payroll.
FEB-22-2016	- x V1.4 Introduction of Four months of Paid Maternity leave. Removal of EML option & No documentation requirements to apply for MLOP. MLOP can be availed for reasons of Childcare after ML or before ML if medically warranted. - x V1.5 Introduction of Child Adoption leave for other genders. Introduction of ML entitlement for onsite returnees to India Payroll.
APR-01-2017	V1.6 Extension of ML to 26 weeks as per the Maternity Amendment Act, 2017. Extension of Adoption leave to 84 days for women Associates adopting a child whose age is less than 3 months. Changes incorporated as part of the annual review.
JUL-05-2017	V1.7 Introduction of commissioning leave as per the Maternity Benefit (Amendment) Act, 2017. Amendment to LOP guidelines.
JUN-29-2018	V1.8 Introduction of earned leave encashment benefit.
OCT-15-2019	V1.9 Introduction of Paternity Leave.
DEC-11-2020	V2.0 Amendment to EML and Miscarriage Leave guidelines, entitlements of EL / SL / CL. Annual review of policy.
FEB-16-2022	V2.1 Addition of Involuntary Absence from Work, Vaccination Leave and updated sick leave policy.
MAR-01-2023	Standardization of template. Removed covid leave appendix. Removal of involuntary absence from work & vaccination leave

Policy Control Information

Policy Name: Leave Policy - India

Department: India Total Rewards

Revision Date: MAR-01-2023

Effective Date: SEP-01-2011

Policy Owner: Head of Human Resources - India

Appendix A

Declaration for change of maternity leave period

As per the Maternity Benefit Act, 1961 women associates are entitled for-

- 26 weeks of paid leave for the first two children, 8 weeks prior to the expected date of delivery ("EDD") and 18 weeks post-delivery.
- 12 weeks paid leave for third child onwards, 6 weeks prior to the expected date of delivery and 6 weeks post-delivery.

Note: The failure to give notice under this provision shall not disentitle a women associate to avail maternity leave benefit.

Pursuant to the above, I am aware that as per the maternity benefit policy and the maternity benefit Act 1961, I am entitled to 26 weeks/12 weeks maternity leave as applicable.

I would like to avail my maternity leave from **<DD/MM/YYYY> (Maternity Leave Start Date)** which is lesser than 6/8 weeks from the EDD.

I therefore herewith furnish the medical fitness certificate issued by my gynecologist permitting travel and working till **<DD/MM/YYYY>** (kindly enter the day before the maternity leave start date) and I am aware that in the event of any change in medical health condition, I shall be duly applying for change in my maternity leave start date.

I further declare that my family is aware of the leave entitlements and my willingness to work as per the medical fitness certificate.

I also declare that I am not forced by my managers or any officers including Human Resource manager to work and this decision to apply for maternity leave from **<DD/MM/YYYY>** is voluntary.

I am solely responsible for any liabilities, injury and will indemnify Cognizant and its assigns of any legal/ financial or reputational damages caused by my action.

Associate id:

Associate name:

Location:

Date:

Signature: